

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
JUDGMENT

W.P.No.6747/2019

Sardar Ahmad Hayat etc. **VS.** Member (Colonies), Board of
Revenue etc.

Date of hearing : 04.10.2019

Petitioners by : Messrs Salman Akram Raja, Malik Ahsan Mahmood, Usman Ali Bhoon, Umar Akram Chaudhry, Tariq Bashir and Shabbir Hussain, Advocates

Respondents by : Mr. Azmat Hayat Khan Lodhi, Assistant Attorney General for Pakistan for respondent No.3

Mr. Waseem Iqbal Butt, Assistant Advocate General alongwith Muhammad Arshad Khan, Naib Tehsildar.

Messrs Asad Manzoor Butt, Ghazanfar Ali Joiya and Ch. Imtiaz Ahmed Goraya, Advocates for respondent No.7 in W.P.No.6747 of 2019, W.P.No.36878 of 2019, 36879 of 2019, 36880 of 2019, 36881 of 2019 and W.P.No.36883 of 2019.

Ayesha Liaqat Butt, Advocate for respondents No.8 to 25 in W.P.No.36878 of 2019, 36879 of 2019, 36880 of 2019, 36881 of 2019 and W.P.No.36883 of 2019.

Mr. Haroon Mehboob Butt, Advocate for respondents No.8 to 11 in W.P.No.6801/2019

Maher Abdul Shakoor, Advocate for respondents No.8 to 10

Mr. Muhammad Azaz Malik, Advocate for respondents No.8 to 11 in W.P.No.6803/2019

Ch. Muhammad Iqbal, J:- Through this single judgment, I intend to decide the captioned Writ Petition alongwith following connected writ petitions, as common question of law and facts are involved in all these cases:

1	W.P.No.6795/2019	6	W.P.No.36879/2019
2	W.P.No.6799/2019	7	W.P.No.36880/2019
3	W.P.No.6801/2019	8	W.P.No.36881/2019
4	W.P.No.6803/2019	9	W.P.No.36883/2019
5	W.P.No.36878/2019		

2. Through this writ petition, the petitioners have challenged the order dated 30.01.2019, passed by the Member (Colonies), Board of Revenue Punjab, Lahore whereby petitioners' application for grant of extension in the lease period was dismissed.

3. The chequered chronological facts of the case are that Sardar Ghulam Hussain, predecessor-in-interest of the petitioners, obtained land measuring 1448 Kanal under the Horse Breeding Scheme (to be referred hereinafter as the "scheme") situated in Chak No.244-L village Kassowal Tehsil Chichawatni District Sahiwal, on 24.05.1932 under the Filly Rating Conditions set out under Notification No.3979-C dated 14.11.1931 for a period of ten years. Subsequently Filly Rating Conditions were converted into Horse Breeding Conditions vide notification No.2033-C dated 20.06.1934. During the pendency of the aforesaid lease period, Sardar Ghulam Hussain Khan died in the year 1938 and the land was allotted to his son Sarfraz Khan till 09.06.1951, who was murdered by his son, as such, the leased land was allotted to brother of deceased allottee namely Sardar Rahim Bukhsh for one year w.e.f. 09.06.1951 to 08.06.1952 which was renewed from time to time for a period of three years upto 1958 and lastly renewed for a period of 10 years from 1958 to 1968. During the pendency of said lease, Sardar Rahim Bukhsh died on 24.02.1961 and lease was granted to his real son Sardar Muhammad Aslam Sial for un-expired period of lease w.e.f 24.02.1961 to 08.06.1968. Sardar Muhammad Aslam father of the present petitioners on the expiry of the above term of lease filed application for the renewal of the lease for another period of 10 years which was refused by the respondent-department vide order dated 17.08.1970, which refusal resulted into initiation of litigation between the parties. Against the above refusal order

dated 17.08.1970, Sardar Muhammad Aslam filed Writ Petition No.1392 of 1970 which was allowed and order of the respondent-department regarding refusal to renew the tenancy was set aside and all the orders passed by the respondent-department were quashed through a judgment dated 03.04.1973 reported as Sardar Muhammad Aslam Sial v. Government of Pakistan, etc. (PLJ 1973 Lahore 290). Against the above decision of this Court, Latter Patent Appeal Nos.61, 62, 63 & 65 of 1973 were filed by the respondent-Department, which were allowed by the learned Division Bench of this Court vide order dated 09.07.1977. Against the said order, Sardar Muhammad Aslam Khan Sial, the predecessor-in-interest of the petitioners, filed Civil Appeal Nos.182 to 189 of 1977 and the Hon'ble Supreme Court of Pakistan, after setting aside the order dated 09.07.1977 passed by the Division Bench of this Court in L.P.As/I.C.As, upheld the judgment of the learned Single Judge (mentioned supra) by observing that the authorities concerned would not be debarred from deciding each case afresh in accordance with law. This pronouncement of the August Supreme Court is reported as Sardar Muhammad Aslam Sial and 3 others v. Government of Pakistan and 3 others (1985 SCMR 9). After the death of Sardar Muhammad Aslam Khan Sial, the land was allotted to his heirs:

Sr. No.	Name	Kanal	Marlas
1	Sardar Ahmad Hayat	423	17
2	Sardar Khizar Hayat	609	18
3	Sardar Kabir Ahmad	413	06

under the Horse Breeding Scheme by the District Collector Sahiwal and the petitioners executed agreement with the Board of Revenue on 02.01.1996 under the Scheme of 1983 for a period of 10 years w.e.f. Kharif 1994 to Rabi 2004. The petitioners filed application for renewal of the lease agreement which was yet pending decision when they filed W.P.Nos.3039 to 3042 of 2004

at Multan Bench of this Court and vide order dated 17.06.2004 a direction was passed to the respondent-department to decide the applications of the petitioners in the light of the judgment passed by the Hon'ble Supreme Court of Pakistan (supra). In compliance of the above direction vide alleged letter dated 28.10.2004, the lease of the petitioners was allegedly renewed from Rabi 2004 to Kharif 2014 by the Deputy Commissioner. The matter of above renewal of lease came under consideration of the Member (Colonies), Board of Revenue who after hearing all the parties, declared that the lessees/petitioners are not entitled for renewal of lease as per the notification dated 09.08.1983 regarding Horse Breeding Scheme and recalled the alleged lease renewal letter dated 28.10.2004 and 16.09.2005 through order dated 08.08.2006. The petitioners challenged the said order through W.P.No.4082/2006 and this Court vide order dated 21.05.2015 disposed of the said writ petition with the direction to the competent authority to decide the matter within four weeks but the matter was not decided during the stipulated period and the petitioners again filed W.P.No.11119/2015 which was allowed by directing the respondent-department to decide the matter within a period of one month. In compliance of the direction passed by this Court, Member (Colonies) Board of Revenue Punjab, vide impugned order dated 30.01.2019, turned down the request of the petitioners for the renewal of the lease period, granted the lease of the disputed land to the new lessees and delivered the possession to them accordingly. Hence, these writ petitions.

4. Learned counsel for the petitioners submits that as per clause 16 of the Horse Breeding Scheme dated 20.06.1934, the petitioners are entitled to renewal of the lease period; that the Horse Breeding Scheme of 1983 is not applicable upon the case of the petitioners; that neither any notice was served to the petitioners before passing of the impugned order nor the proper

procedure was adopted by the Member (Colonies), Board of Revenue while passing the impugned order and nor the petitioners are defaulters, as such the impugned order is patently illegal and passed in violation of the scheme of 1934 and the judgment passed by this Court as well as judgment of the Hon'ble Supreme Court of Pakistan (*supra*).

5. Learned counsels for the respondents submit that Horse Breeding Scheme 1934 has been repealed and a new policy on the subject has been promulgated with effect from 09.08.1983; that after the expiry of the lease period the petitioners themselves executed agreement under the fresh Horse Breeding Scheme of 1983 under which the tenancy is not renewable; that the time of lease stood expired in the year 2004 whereafter the status of the petitioners is that of illegal occupants; that the petitioners have come to this Court with unclean hands and are not entitled for the equitable discretionary relief in writ jurisdiction of this Court; that the lease period of the petitioners has already been expired in the year 2004 and the respondent-department has further granted leases of the suit property to the private respondents who have got possession before the filing of instant petitions and are cultivating the leased land. Further submits that the writ petitions have been filed with concealment of material facts, as such, the instant petitions are liable to be dismissed.

6. I have heard the arguments of learned counsels for the parties and have gone through the record with their able assistance.

7. Admittedly, the petitioners enjoyed the possession of the suit property on the basis of the lease agreements executed by them on 02.01.1996, under the Scheme dated 09.08.1983, for a period of ten years w.e.f. Kharif 1994 to Rabi 2004. The Colonies Department introduced Stud Form/Animal Breeding Conditions through notification 4292-83/2537-CL(I) dated 09.08.1983 issued

by the Secretary to the Government of Punjab, Board of Revenue in supersession of all the previous notifications issued in this behalf for grant of stud land for animal breeding in the colony area of the Punjab. Relevant portion of the notification/scheme dated 09.08.1983 is reproduced as under:

“In exercise of the Powers conferred on him by sub-section (2) of section 10 of the Colonization of Government Lands (Punjab) Act, 1912 (Act No.V of 1912) and in supersession of all previous notifications issued in this behalf, the Government of the Punjab is pleased to issue the following statement of conditions for the grant of state land for animal breeding in the colony area of the Province of the Punjab.

.....

Provided that no person shall be entitled as of right to receive a grant and Government shall have an absolute discretion in the selection of tenancies.”

(emphasis supplied)

As per Clause 3(2) of the aforesaid notification, the tenancy shall be non-renewable which is reproduced as under:

“The tenancy shall be for fixed period of _____ years (from _____ to _____) and shall be non renewable.”

(emphasis supplied)

As per Clause 3(5), the tenant shall execute a non-renewable lease deed:

“The tenant shall execute a non-renewable lease deed subject to all the conditions set out in the statement.”

(emphasis supplied)

Clause 28 of the Scheme describes the number of animals to be kept for breeding as under:

“28. Number of animals to be kept for breeding: (1) The Director shall be the authority to decide as to the class and breeds of animals to be maintained. The tenant shall produce and maintain within one year. In case of imported and within 6 months in case of Remount/Pakistani pedigreed mares/cows/sheep on grant

of tenancy the animals fit for breeding, duly approved by the Director at the following scales failing which his tenancy shall be liable to be cancelled.”

Clause 49 of the aforesaid scheme deals with the imposition of penalty and resumption of tenancy for the breach of any condition of the policy/scheme. Relevant portion of said clause is reproduced as under:

“(5) Where the tenant continues on the land after a case has been reported against him to the Collector vide Sub-clause (3) he shall forfeit to Government 65% of the total produce of his land till such time the case is finally decided.

...

(7) The right of resumption shall be without prejudice to the right accruing to Government under Section 26 of the Act.”

Clause 51 of the aforesaid policy notification deals with the disposal of land on death of a tenant, which is reproduced as under:

“51. Disposal of land on death of tenant: (1) If the tenant dies during the period of tenancy the land shall revert to Government and may be granted to any one of his heirs considered to be fully capable of satisfactorily carrying out the conditions of the grant in all respects for the un-expired period of the lease or to some other tenant subject to such compensation to be paid to the estate of the deceased as may be determined by Government of the recommendations of Ministry of Defence, Government of Pakistan.

(2) Government shall in no case be under any obligation to grant the tenancy to the successors of the deceased tenant.”

(emphasis supplied)

Under aforesaid Clause, after the termination of lease, the legal heirs of the lessee cannot claim the tenancy/lease rights being legal heirs of the lessee and they are not entitled to inherit the said tenancy as settled by this Court in case reported as Ghulam Muhammad v. Member (Judicial-V), Board of Revenue, Punjab, Lahore and others (2006 YLR 45). Relevant portion whereof is reproduced as under:

“2. Before I proceed further in this matter, I may note here that Muhammad Ismail had died during pendency of this writ petition. In view of the settled law that the tenancy which is to be granted under the Horse Breeding Scheme for a fixed period to be renewed from time to time and subject to termination on expiry of lease or death of tenant, is not heritable. In the present case, in the first instance Ismail was never leased out the land and even if it had been leased out his heirs were not entitled to inherit the said tenancy. Reference to be made to the case of Sub. Muhammad Asghar v. Mst. Safia Begum and another (PLD 1976 SC 435).”

8. Admittedly the allotment order was issued by the District Collector on 02.01.1996 under Section 10(3) of the Colonization of Government Lands (Punjab) Act, 1912 as well as under Policy of 1983 in respect of the lease in favour of the petitioners. For ready reference, one of the allotment order is reproduced/scanned as under:

Under Section 10(3) of the Colonization of Govt. Land (Punjab) Act, 1912 and in pursuance of the orders issued by the Secretary to Govt. of the Punjab, Colonization Department vide Memo: No. 2368-95/184-CLT dated 24-9-95 Ministry of Defence Government of Pakistan, Rawalpindi vide their letter No. 18/18/CLT/2-4(1-11)195 dated 16-5-95, the land specified in the following schedule on assumption from the previous grantee in period of ten years from 24-5-95 to 24-5-2004. The allotment will be governed by the statement of condition which is under consideration of Board of Revenue/Ministry of Defence.

After taking possession of the land, the allottee is hereby required to execute and agreement on the stamped paper of the value of Rs.4/- agreeing to abide by the terms and conditions of the lease, which are enforced by the Government.

District Coll
Sd/-

Name, Percentage, caste and address of the allottee.	Chak No.	Square nos.	Khasra No. K	K	Area
Sardar Ahmad Hayat	2/14-L	4-28	18-18	423-17	
Sardar Muhammad Akbar		29	164-18		
Sd/-			180-01		

ACKNOWLEDGEMENT

I acknowledge that the land specified above has been allotted to me under the order of the Punjab Government on the conditions mentioned in the above order which I undertake to fulfil.

No. 794 ABC/CAR. Dated. 4-1-96

1) Copy is forwarded to the Tehsildar, for information and immediate necessary action. The allottee should be put into possession of the allotted land immediately. The compensation of the buildings and uncut trees standing on the land allotted should be assessed and reported to this office in due course. Before handing over possession to the allottee, he should be directed to give an affidavit declaring the limited property in any he holds anywhere in Pakistan except the land allotted vide this order. After receiving the affidavit so given, the PI Units of the entire land should be calculated and it should be ensured that the allottee does not hold the land more than the limits laid down in the Land Reforms Act, 1977.

2) Sardar Ahmad Hayat Sd/- Teh. Cci Dist. Sahiwal
Tehsildar concerned for taking possession of the allotted land.

3) Deputy Secretary to Govt. of Pakistan Ministry of Defence, Rawalpindi with reference to his Memo: No. 5804/268/Rem/C/3/17D dated 16-5-95 addressed to the Secretary (Colonias), S.O.R, Punjab, Lahore for information.

4) Secretary to Govt. Punjab Colonias Deptt: Lahore.

5) District Account Officer, Sahiwal, for information and necessary action.

District Collector,
Sd/-
2-1-96

The relevant portion of the aforesaid allotment order is reproduced as under:

“Under Section 10(3) of the Colonization of Govt: Land (Punjab) Act, V of 1912 and in pursuance of the orders issued by the Secretary to Govt: of the Punjab Colonies Department vide Memo No.2368-95/3811-CLT dated 24.09.95 and Ministry of Defence, Government of Pakistan, Rawalpindi vide their letter No.5804/268/Rem/C/3/7/D-4(A-IV)/95 dated 16-5-95, the land specified in the following schedule on resumption from the previous stud grantee is allotted to the new stud grantee named in Column I of the schedule for a period of ten years from Kharif 94 to Rabi 2004. The allotment will be governed by the statement of condition which is under consideration of Board of Revenue/Ministry of Defence.”

(emphasis supplied)

9. In compliance of the aforesaid order, lease agreement was executed by the petitioners under the scheme of 09.08.1983 for a period of ten years w.e.f. 1994 to 2004. The petitioners are bound to abide by the terms and conditions of the agreement voluntarily executed by them as well as the lease order issued by the respondent-department under which the lease was granted afresh from Kharif 1994 to Rabi 2004 under the scheme of 1983 but no provision/clause is available in Policy 1983 for the renewal of the lease agreement. Petitioners are bound by the terms and conditions of the agreement, they executed on 02.01.1996 under which they availed the usufruct of the tenancy and are debarred to approbate and reprobate their stances.

10. So far as argument of learned counsel for the petitioners that the renewal orders dated 28.10.2004 and 16.09.2005 were passed by the respondent-department and the lease period was extended from Rabi 2004 to Kharif 2014, is concerned, under Section 23 of the Contract Act, 1872, if any order is passed by any authority beyond his jurisdiction and against the public policy, such order is nullity in the eyes of law. For ready reference, Section 23 of the Act *ibid* is reproduced as under:

*“23. What consideration and objects are lawful and what not.—The consideration or objection of an agreement is lawful, unless—It is forbidden by law; or
is of such a nature that, if permitted, it would defeat the provisions of any law; or
is fraudulent; or
involves or implies injury to the person or property of another; or
the Court regards it as immoral, or opposed to public policy.*

In each of these cases, the consideration or object of an agreement is said to be unlawful. Every agreement of which the object or consideration is unlawful is void.”
(emphasis supplied)

With regard to contract against law and public policy, the Hon’ble Supreme Court of Pakistan in a case reported as Hameedullah and 9 others Vs. Headmistress, Government Girls School Chokara, District Karak and 5 others (1997 SCMR 855) held that:-

“From the aforestated observations it is clear that the agreement between the Government and the appellant was in the nature of sale of a public office, consideration being the transfer of land. Sale of public office cannot be a legal transaction. It is completely illegal and against public policy. Therefore, such an agreement is hit by section 23 of the Contract Act, which makes it void.”
(emphasis supplied)

The August Court in a case reported as Maulana Abdul Haque Baloch and others Vs. Government of Balochistan through Secretary Industries and Mineral Development and others (PLD 2013 SC 641) has held as under:-

“The competent authority also failed to determine the terms and conditions to be fixed in granting the relaxations sought for. In this view of the matter, in absence of the requirements of rule 98 being fulfilled in the instant case, all relaxations were granted in excess of authority and were entirely beyond the scope of the provisions of law, and therefore, ultra vires the powers granted under rule 98 of BMCR 1970 read with section 5 of the Act of 1948, and thus void. Shorn of relaxations so grant, CHEJVA has no legal sanctity and consequently remains an agreement entered into against the provisions of law, hence not enforceable.

All the key provisions of CHEJVA were made subject to a reliance on relaxations that were illegal and void ab initio, the illegality of the agreement seeps to its root. As such, no operative part of the agreement survives to be independently enforceable and the principle of severability cannot be applied to save any part thereof. The agreement is, therefore, void and unenforceable in its entirety under the law.”

In another judgment reported as Muhammad Arshad Khakwani Vs. I.U.B. and another (2011 MLD 322) this Court has held that:-

“No doubt the Statutory bodies are governed under the Act, rules, regulations and statutes which are meant for the said purpose and no one is allowed to supersede the same. The University functionaries are presumed to act under the law and no one can exceed from its domain neither supersede nor deviate. If the provisions of the Act are not complied with then the Institutions cannot run smoothly as is required by the law and the guarantees provided by the Constitution of Islamic Republic of Pakistan, 1973.”

Admittedly under clause 3(2) & 3(5) of the Policy/Notification of 1983, the tenancy is obviously non-renewable and if any illegal extension/ renewal in lease is obtained from the incompetent authority that renewal cannot be cited as condition precedent for commission of another violation of the law and policy. Further when law prescribes anything to be done in a particular manner, it is to be done as mandated by law, any transgression amounts to stepping over the authority rendering the act, without lawful authority. In this regard, reliance may respectfully be placed on the case of Government of the Punjab, Food Department through Secretary Food & Another Vs. Messrs United Sugar Mills Limited & Another (2008 SCMR 1148). Moreover, the orders dated 28.10.2004 and 16.09.2005 whereby some unauthorized renewals were granted to the petitioners which were withdrawn by the Board of Revenue Punjab vide order dated 08.08.2006. The petitioners challenged the said order through W.P.No.4082/2006 which was disposed of on 21.05.2015 but the order dated 08.08.2006 was not set aside by this Court as such the said order still holds the field. The learned counsel for the

petitioners argued that the official respondent counsel made a statement on 21.05.2015 in writ petition mentioned hereinabove that the lease period has been expired in the year 2014 and in this way, he admitted the lawful extension of the lease period. Suffice it to say in this regard that any unauthorized statement giving illegal benefit to a person if got recorded by any counsel against the record as well as the law, such statement cannot be considered as a valid/qualified admission in this regard. The Hon'ble Supreme Court of Pakistan has resolved this issue in a case cited as Faisalabad Development Authority v. Raja Jahangir Nasir and others (2004 SCMR 1247) as under:

9... These are certain recommendations made through Notification No.F.5(2)/2003 by Attorney-General for Pakistan pursuance to directions issued by this Court in Pakistan Railways v. Muhammad Sharif Javaid Warsi PLD 2003 SC 6. Recommendation No.8.0 concerning concessions is reproduced below:--

Concessions

8.0 The Law Officers must not make any statement conceding an issue or a case in Court unless they have been duly instructed in writing by the Competent Authority and an officer not below Grade-17 is present in Court to verify and reiterate such instructions. In all such cases the presence of the officer must be recorded in the order of the Court and the written instructions made a part of the record of the Court.”

Further reliance is placed on Muhammad Arif through L.Rs. v. District Coordination Officer/Chairman, P&D Board, LDA and others (2016 SCMR 2050).

11. The petitioners got lease in the year 1996 for a period of 10 years w.e.f. 1994 to 2004, executed agreement under the scheme of 1983, enjoyed possession and fruit of the leased land but they never challenged the vires of scheme 1983, as such, the petitioners, at this belated stage, cannot claim the inapplicability

of scheme of 1983 and they are debarred to wriggle out from their own undertaking given while executing the lease agreement with the respondent-department. Even otherwise, the petitioners have no vested right to retain the lease hold rights for infinitum against the law. The petitioners are bound by the terms and conditions of scheme 1983 but they did not fulfill the said terms and conditions of the lease agreement as enshrined in clause 28 of the Scheme as they failed to render required performance. The lease period has already been lapsed and they are intending to prolong their possession over the suit land. They have not paid the reward against the utilization of land owned by the respondent-department which entails the invoking of clause 33 of the agreement requiring the imposition of penalty upon the petitioners. The respondent-department has retrieved the possession from the petitioners, executed fresh lease agreements under the scheme of 1983 and handed over the possession to the new lessees/private respondents.

12. Undeniably the petitioners signed the lease agreement in 1996 containing stipulations of non-renewability of the lease which were accepted by them, as such, they are legally debarred to deviate from said undertaking. Moreover, on the one hand they availed the benefit of the tenancy under the lease agreement for many years and on the other hand, they are taking an escape from the conditions of the policy of 1983. Further it is delineated stance of the petitioners that they are entitled for extension of lease under original notification of lease pertaining to the year 1934 whereas the petitioners themselves have accepted the terms and conditions of lease agreement signed/executed under the scheme of 1983, as such, they cannot wriggle out from their own undertakings which invites the applicability of principle of approbate and reprobate. Similar issue has been settled by the Hon'ble Supreme Court of Pakistan in a judgment reported as

Mst.Zainab Khatoon Vs. Member (Colonies) Board of Revenue, Punjab and others (1998 SCMR 1188), as under:-

“In this view of the matter the above contention is devoid of any force as the petitioners could not have claimed renewal of the lease as a matter of right. The corollary of the above conclusion is that the Government was free to offer renewal for a lesser area than what was covered in the expired lease. The rationale for reducing ceiling of the area for allotment seems to be that the Government wishes to accommodate more retired Army personnel under the above Scheme.....

The facts of Civil Petition No.425 of 1994 appears to be different, in which lease was renewed up to the period expiring in June, 1996, but the same was cancelled on the ground that the petitioners’ performance was not found satisfactory. The High Court has rightly observed that it is open to the petitioners to agitate the above question before the forums provided under the relevant law. The above petition has also not merits.”

13. So far the argument of learned counsel for the petitioners that the impugned order was passed in violation of the judgments of this Court cited as Sardar Muhammad Aslam Sial v. Government of Pakistan, etc. (PLJ 1973 Lahore 290) & judgment dated 12.04.1983 of Hon’ble Supreme Court of Pakistan reported as Sardar Muhammad Aslam Sial and 3 others v. Government of Pakistan and 3 others (1985 SCMR 9) is misconceived as in the said case the predecessor-in-interest of the petitioners only raised objection that he was not heard by the respondent-department before passing the orders of non-renewal of lease which plea turned correct and this Court set aside the order with observation that “however, the order of the Court shall not debar the authorities concerned to decide each case afresh in accordance with law.”, which observation was upheld by the Hon’ble Supreme Court of Pakistan as “... that the authorities concerned were, however, not debarred from deciding each case

afresh in accordance with law, is maintained.”, as such, the respondent-authority after hearing all the parties concerned passed order in consonance of the Scheme 1983 applicable on the case of the petitioners and no violation of the judgments (supra) has been committed by the respondent-department.

14. The next argument of learned counsel for the petitioners is that the allotment made in favour of the private respondents is illegal, it is appropriate to observe that under the Scheme 1983 it is exclusive jurisdiction of the respondent-department to adjudge the eligibility criteria of the lessees to lease out the state land under the scheme, as such, the respondent-department after fulfilling the criteria, rightly leased out the land to the private respondents according to the merit list maintained by the authority. The suitability of a candidate for grant of lease could be considered by the revenue authorities on the recommendations made by the District Remount Office. Reliance is placed on Noor Muhammad v. Member, Board of Revenue and others (2006 SCMR 769), relevant portion whereof is reproduced as under:

“4. It has been rightly pointed out by the learned Single Judge of the High Court that the question of suitability was a matter decision about which was to be made by the Revenue Authorities and if these Authorities had found one of the two legal heirs more fit and suitable as compared to the other, the same could not be substituted on merits in Constitutional jurisdiction on the ground that it was without lawful authority unless it was established that the decision of the Revenue Authority was violative of any law on the subject render it without lawful authority.”

In another case cited as Bahawal Sher v. Sajawal Khan and 4 others (1990 SCMR 1139), the Hon'ble Supreme Court of Pakistan has held that the revenue authorities are the best judges of the suitability of persons to hold the allotment under the horse breeding tenancy scheme. Reliance is also placed on Raja Muhammad Aslam v. Raja Muhammad Sarwar (2000 SCMR

1006) and Syed Amjad Hussain v. member, Board of Revenue (Colonies), Punjab, Lahore and 4 others (1987 CLC 1868).

15. The recommendations of the District Remount Officer should be given due weightage by the concerned authority while granting the tenancy. In this regard, the Hon'ble Supreme Court of Pakistan in a case cited as Raja Muhammad Aslam v. Raja Muhammad Sarwar and others (2000 SCMR 531) held as under:

“6..... The learned High Court observed that the choice of the Collector passed on the recommendations of the District Remount Officer could not be demonstrated to be either arbitrary, fanciful or capricious. Subedar Muhammad Asghar v. Mst. Safia Begum and another (PLD 1976 SC 435) may be cited wherein it was observed that the recommendations of the District Remount Officer were entitled to due weight and interference with the orders of the Collector and Board of Revenue in such matter in the exercise of Constitutional jurisdiction of the High Court was disapproved.”

In the case of Muhammad Nawaz v. Member Board of Revenue and others (2009 SCMR 562) the Hon'ble Supreme Court of Pakistan has held as under:

“6. As regards the case of Raja Muhammad Aslam (ibid), suffice it to say that in the said case the recommendations of the District Remount Officer for grant of tenancy were accepted by the Deputy Commissioner, Commissioner, the Member, Board of Revenue and also affirmed by the learned High Court and under the said set of circumstances, it was held that as findings of the Deputy Commissioner/District Collector based on recommendations of District Remount Officer were accepted by all the forums including the learned High Court, therefore, the recommendations of the District Remount Officer should be given due weight, while in the present case only the Collector decided in favour of the petitioner, while the other forums, as noted above, including the learned High Court decided against the petitioner. In view whereof, the said case relied upon by the learned counsel is of no avail to the petitioner.”

Moreover the selection of tenants is a discretion of the Provincial Government and this Court cannot substitute its findings with the findings of the tribunal of a competent jurisdiction unless it is shown that the order is coram non judice or has been passed in derogation to the law and the relevant rules. Reliance is placed on Sub. Muhammad Asghar v. Mst. Safia Begum and another (PLD 1976 SC 435), relevant portion whereof is reproduced as under:

“... It is well settled that where a Court or a tribunal has jurisdiction and it determines a question, it cannot be said that it acted illegally or with material irregularity merely because it came to an erroneous decision on a question of fact or even of law. It is wholly wrong to consider that the constitutional provision was designed to empower the High Court to interfere with the decision of a Court or tribunal of inferior jurisdiction, merely because in its opinion the decision was wrong.”

16. Learned counsel for the petitioners argued that the case of Mst. Karamat Begum is different from the case of the other petitioners, as she has never signed the agreement under the Scheme of 1983, suffice it to say in this regard that the Policy of 1934 stood superseded/replaced with promulgation of the fresh policy on 08.09.1983 and thereafter no policy is in existence under which she can claim the renewal of her lease. It is settled law that when the cause of action arose then the policy in vogue may be made applicable. Admittedly the lease in favour of Mst. Karamat Begum was expired in the year 1997 which was not renewed. On 09.01.2014, she filed an application for renewal of the lease/tenancy which means that as the tenancy period of Mst. Karamat Begum had expired, as such, from 1997 till eviction, the possession of Mst. Karamat Begum over the said State land would be considered unauthorized, illegal and without any lease agreement. So far as the alleged renewal orders dated 28.10.2004 and 16.09.2005 are concerned, this Court, in the preceding paragraphs of this judgment, has already declared the said orders as void ab initio and against the public policy.

17. The petitioners cannot claim for getting the tenancy under the policy of 1934 which has already been superseded through Statement of Conditions/Scheme dated 09.08.1983. The impugned order of termination of lease and the resumption of stud land does not suffer from any jurisdictional defect. The lease period of the petitioners has already been expired and suit land has been allotted on the recommendations of District Remount Officer by the District Collector to different persons/private respondents who have already got possession of the land before institution of these petitions, as such, the impugned order does not require any interference by this Court. As the case of the petitioners falls under the scheme of 1983, as such, there is no need to discuss the clause 16 of scheme 1934.

18. For what has been discussed above, instant writ petition as well as the connected writ petitions are hereby dismissed being devoid of any merit.

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge

Abdul Hafeez